

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as
agent for Mediterranean Shipping Company S.A., and TOTAL TERMINALS
INTERNATIONAL, LLC,
RESPONDENTS.

JOINT MOTION FOR CONTINUED STAY OF PROCEEDING

Pursuant to 46 C.F.R. §§502.69 and 502.70, Respondents FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”) and MSC Mediterranean Shipping Company, S.A.¹ and Mediterranean Shipping Company (USA) Inc. (“MSC”)(FTN and MSC are sometimes referred to jointly as “Respondents”) and Complainant AirBoss Defense Group, LLC (“ADG”) hereby jointly move to stay this proceeding through March 14, 2025.

I. INTRODUCTION

This proceeding was commenced when ADG filed a complaint on or about March 14, 2024.

As noted in paragraph 42 of the Complaint, several of the parties are litigating claims arising

¹ Incorrectly identified as Mediterranean Shipping Company, S.A. in the Complaint.

out of the same transactions involved in this proceeding in federal court. On December 17, 2024, the parties engaged in mediation under the auspices of a federal magistrate judge and provided the Presiding Officer with a status report on the results of that mediation. On December 20, 2024, the Presiding Officer issued an Order Staying Proceeding based on the parties' status report.

The parties held a second mediation with the federal magistrate judge, at which substantial progress toward a global resolution of the disputes among them was made. A third mediation session with the federal magistrate judge is scheduled for March 10, 2025.

II. THIS PROCEEDING SHOULD BE STAYED TO ALLOW FOR FURTHER MEDIATION

The Commission, like all courts, has the power to stay a proceeding. That power is incidental to the inherent ability of every court to control the disposition of the cases on its docket with economy of time for itself, for counsel, and for litigants. *Greatway Logistics Group, LLC v. Ocean Network Express Pte. Ltd.*, FMC Docket No. 21-04, Order Denying Motion to Stay (July 16, 2021), citing *Landis v. North American Co.*, 299 U.S. 248, 254 (1936).

The Commission also has a strong and consistent policy of 'encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.' *Aeneas Exporting LLC v. Carlo Shipping Intl, Inc.*, Docket No. 2011, 2020 FMC LEXIS 189, at *2, 2020 WL 5942148, at *2 (Fed. Mar. Comm'n Aug. 24, 2020) (Wirth, C.J.) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002)). "[I]f it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, Docket Nos. 88-2, 88-4, 1988 FMC LEXIS 25, at *19, 24 S.R.R. 1129, 1134 (All Aug. 12, 1988)). "Reaching a settlement allows the parties to settle

their differences, without an admission of a violation of law by the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation." *Mac Indus., Inc. d/b/a Mac Container Line v. COSCO Shipping Lines Co., Ltd.*, Docket No. 20-09, 2020 FMC LEXIS 181, at *3, 2020 WL 4464298, at *2 (Fed. Mar. Comm'n July 29, 2020) (Wirth, C.J.) (quoting *APM Terminals N Am., Inc. v. Port Auth. of N.Y. and N.J.*, 31 S.R.R. 623, 626 (FMC 2009)).

Good cause exists to stay this proceeding. A stay is consistent with the Commission's policy encouraging settlement. In this instance, staying the proceeding to permit further mediation not only helps facilitate the settlement of this proceeding, but the global resolution of numerous disputes among the parties in federal court. The prospect of settlement is real in light of the two mediation sessions that have already taken place and the third which has been scheduled for less than a month from now.

Moreover, staying the proceeding to facilitate settlement before the proceeding moves into the discovery phase conserves the resources of the parties and of the Commission without prejudicing any party.

In light of the foregoing, the parties respectfully request that this proceeding be stayed until March 14, 2025, prior to which date the parties will submit a joint status report on the outcome of the March 10, 2025 mediation session.

Respectfully submitted,

Dated: February 14, 2025

By: /s/ Wayne Rohde
Wayne Rohde, Esq
Cozen O'Connor
2001 M Street, NW
Washington, DC 20036

(202) 463-2507
wrohde@cozen.com

Co-Counsel for Respondents
MSC Mediterranean Shipping Company
S.A. and Mediterranean Shipping
Company (USA) Inc., as agent for MSC

By: /s/ Vincent M. DeOrchis

Vincent M. DeOrchis
Kaspar Kielland
Montgomery McCracken Walker &
Rhoads LLP
437 Madison Avenue
New York, NY 10022
(212) 551-7730
vdeorchis@mmwr.com
kkielland@mmwr.com

Co-Counsel for Respondents
MSC Mediterranean Shipping Company
S.A. and Mediterranean Shipping
Company (USA) Inc., as agent for MSC

By: /s/ Cameron W. Roberts
Cameron W. Roberts
Andrew D. Kehagiaras
Theodore H. Adkinson
Roberts & Kehagiaras LLP
100 West Broadway, Suite 660
Long Beach, CA 90802
(310) 642-9800
cwr@tradeandcargo.com
adk@tradeandcargo.com
tha@tradeandcargo.com

Counsel for AirBoss Defense Group, LLC

By: /s/ David K. Monroe
David K. Monroe
Rachel E. Amster
GKG LAW, P.C.
The Foundry Building
1055 Thomas Jefferson Street, NW

Suite 620
Washington, DC 20007
(202) 342-5235
dmonroe@gkglaw.com
ramster@gkglaw.com

Counsel for FedEx Trade Networks
Transport & Brokerage, Inc.